

****July 18, 2023****

****A New Sanction for Violating GDPR****

The National Supervisory Authority has completed an investigation in June of this year into the operator ING BANK NV Amsterdam Bucharest Branch, during which it found violations of the provisions of Article 32 paragraph (1) letter b), paragraph (2), and paragraph (4) of the General Data Protection Regulation. As such, ING BANK NV Amsterdam Bucharest Branch has been fined in the amount of 14,889 lei, equivalent to 3,000 EURO.

The investigation was initiated following the operator's notification of a personal data security breach under the General Data Protection Regulation. During the investigation, it was found that there was an unauthorized transmission, via the WhatsApp application, of a .pdf file containing personal data. This situation led to the loss of confidentiality of personal data of a significant number of the operator's clients.

Thus, the National Supervisory Authority found that ING BANK NV Amsterdam Bucharest Branch had not implemented appropriate technical and organizational measures to ensure a level of security corresponding to the risk of processing, generated, in particular, accidentally or illegally, by the destruction, loss, alteration, unauthorized disclosure, or unauthorized access to personal data stored or processed in any other way.

We emphasize that, according to Article 32 paragraph (4) of the General Data Protection Regulation, the operator had the obligation to take measures to ensure that any natural person acting under the authority of the operator and having access to personal data processes it only at the request of the operator.

****Legal and Communication Department****

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